

332 P.3d 214 (Table)

Unpublished Disposition

(Pursuant to Kansas Supreme Court Rule 7.04(f), unpublished opinions are not precedential and are not favored for citation. They may be cited for persuasive authority on a material issue not addressed by a published Kansas appellate court opinion.)

Court of Appeals of Kansas.

STATE of Kansas, Appellee,

v.

Scott P. MOORE, Appellant.

No. 109,787.

|

Aug. 22, 2014.

|

Review Denied October 7, 2015.

Appeal from Johnson District Court; [Peter V. Ruddick](#) and [Brenda M. Cameron](#), Judge.

Attorneys and Law Firms

[J. Ryan Erker](#), of Erker Law Firm, P.A., of Olathe, and Brandon T. Hottman, of Hottman Law Firm, L.L.C., of Olathe, for appellant.

[Shawn E. Minihan](#), assistant district attorney, [Stephen M. Howe](#), district attorney, and [Derek Schmidt](#), attorney general, for appellee.

Before [LEBEN](#), P.J., [PIERRON](#) and [STEGALL](#), JJ.

MEMORANDUM OPINION**PER CURIAM.**

*1 Scott P. Moore appeals his conviction for one count of misdemeanor sexual battery under [K.S.A. 21-3517](#). He argues the district court erred in admitting evidence of alleged incidents of prior misconduct under [K.S.A.2011 Supp. 60-455](#). He also contends the court erred in denying his motions for mistrial based on allegedly improper comments by the prosecutor that drew attention to his decision not to testify. We affirm.

Moore was charged with two counts of misdemeanor sexual battery under [K.S.A. 21-3517](#) related to two separate incidents alleged by the victim, N.M.K. According to the charging affidavit, 16 year-old N.M.K. was a friend of Moore's son. N.M.K. reported that he spent the night of May 14 to May 15, 2010, with Moore's son at Moore's residence. During the early morning hours, N.M.K. was awoken by a flash of light, which he believed to be a camera. N.M.K. drifted back to sleep but woke a short time later when he felt someone touching his penis through his clothing. He then heard footsteps going toward the area of the residence where Moore's bedroom was located. This incident reminded N.M.K. of a previous incident that occurred sometime in December 2009. On that occasion, N.M.K. spent the night with his friend at Moore's residence. N.M.K. woke during the night when he felt someone pushing the couch cushions down and touching his penis area through his clothing. N.M.K. saw that it was Moore, who told N.M.K. that he was looking for the television remote.

K.S.A.2011 Supp. 60-455 Evidence

The State filed a motion to admit evidence of other crimes or civil wrongs under [K.S.A.2011 Supp. 60-455](#). Neither the State's motion nor Moore's response are part of the record on appeal. In February 2012, the district court held a hearing on the motion. At the hearing, the State proffered evidence that Moore had inappropriately touched or attempted to touch teenage boys during two different youth retreats at which Moore was a counselor—one in 2005 and one in 2006. In those incidents, Moore allegedly entered the boys' cabins during the night while they were sleeping, used a flashlight, and touched or attempted to touch the genitals of the victims. Moore was never prosecuted for those alleged crimes. The State also proffered evidence of two other alleged incidents of sexual misconduct by Moore—an allegation of abuse of a young boy that occurred over 30 years earlier and a recent allegation of groping a teenage boy in a subway.

Without citing a specific subsection of [K.S.A.2011 Supp. 60-455](#), the State argued all of those incidents were admissible under that statute to prove Moore's identity, opportunity, lack of mistake or accident, and plan or modus operandi. In particular, the 2005 and 2006 incidents were strikingly similar to the present charges. Moore argued that since none of the facts listed by the State were substantially at issue in the present case, evidence of all of the alleged incidents was inadmissible. Furthermore, the allegations

regarding the abuse of the young boy and the groping in the subway were very different from the present charges. Finally, all of the evidence was highly prejudicial, which outweighed any probative value.

*2 The district court granted the State's motion to admit evidence of the 2005 and 2006 incidents but excluded evidence of the other two allegations. The district court expressed uncertainty about the application of  [K.S.A.2011 Supp. 60-455](#) in light of the substantial statutory amendments that became effective in 2009, specifically the new subsection (d) governing the admissibility during a sex crime prosecution of evidence of other acts of sexual misconduct. But the court found that under subsection (d), evidence of other acts of sexual misconduct would be admissible for any matter to which it was relevant. However, the court would still be required to weigh the evidence's probative value against its prejudicial effect. The court acknowledged that the admission of any of the proffered incidents would be quite prejudicial against Moore.

Without specifically stating which subsection of  [K.S.A.2011 Supp. 60-455](#) it was relying upon, the district court ultimately ruled that the facts alleged in the 2005 and 2006 incidents—including the flashes of light, the sex and age of the victims, and the time of the touching—were substantially similar to the allegations in the present case. Thus, the evidence was relevant to prove identity, opportunity, lack of mistake or accident, and plan, which were at issue in the case. As to the two other allegations, the court found that they were too different from the present charges and were inadmissible.

At the beginning of trial, Moore renewed his objection to the State's proffered evidence of the 2005 and 2006 incidents for the reasons previously placed on the record. The district court granted Moore a continuing objection.

Voir Dire

During jury voir dire, the following exchange occurred:

“[PROSECUTOR]: The defendant also has a right to subpoena witnesses. He doesn't have to. He actually can sit there and read the paper and do nothing throughout this trial, and you can't hold it against him. He doesn't have to testify. Is there anyone here that wants to hear from the defendant?”

“[DEFENSE COUNSEL]: Judge, may we approach, please?”

“THE COURT: Yes.

....

“[DEFENSE COUNSEL]: Judge, I believe it's inappropriate for the prosecution to inquire about my client's right to testify or not to testify, drawing attention to that topic, so I object to that line of inquiry.

“THE COURT: That will be sustained. She has talked about he has a right not to, but don't ask, ‘Do you want to hear from him.’

“[DEFENSE COUNSEL]: I respectfully request a mistrial.

“[PROSECUTOR]: This is not a basis for a mistrial. This is something that is often brought up. I wasn't going into it in depth. I was just trying to get a feeling of: Do you want to hear from him. He's got his absolute right.

“THE COURT: I'm not going to sustain the motion for mistrial. But you cannot ask whether they want to hear from him.”

Trial Testimony—Present Charges

The State first presented the testimony of N.M.K., the alleged victim. He testified he knew Moore and his family through Boy Scouts, where Moore had been a scoutmaster. On the evening of May 14, 2010, when N.M.K. was 16 years old, he joined the Moore family and another friend, M.B., to celebrate the birthday of Moore's son, P.M. The party went to dinner and a movie, then returned to the Moore residence to have cake. N.M.K., M.B., and P.M. went to the basement to play video games along with two of P.M.'s other friends. At some point, N.M.K. decided to stay the night at the Moore residence. He called to ask permission from his mother, who initially said no. Moore then got on the phone and persuaded N.M.K.'s mother to allow him to stay.

*3 P.M.'s other two friends left and N.M.K., M.B., and P.M. remained in the basement playing video games. About an hour later, Moore came to the basement to tell them to go to sleep, at which point everyone (including Moore) went up to the living room. They put on a movie, and N.M.K. laid down on a couch on the left side of the living room. M.B. was on a couch on the right side of the room, and P.M. and Moore were also in the room on other pieces of furniture. P.M. and M.B.

were dozing off to sleep as the movie was ending, which was around 2 or 2:30 a.m. After the movie ended, N.M.K. shut his eyes and began to fall asleep.

As N.M.K. was dozing off, he heard shuffling around and heavy footsteps leave the room. The footsteps came back toward the room, and N.M.K. saw bright flashes of light. N.M.K. remained still, wondering what was happening. He heard footsteps walking around a bit, then felt a tap over his clothing on his genital area. After the tap, N.M.K. shuffled around, slightly opened his eyes, and saw a hand retreating from his genital area. He heard heavy footsteps scurrying away towards the front door and up the stairs, where he believed the bedrooms in the residence were located.

After N.M.K. heard the footsteps stop, he got up, grabbed the house phone, and called his mother to come pick him up. P.M. and M.B. both appeared to be asleep, with blankets covering their faces. N.M.K. attempted to wake M.B., but he was fast asleep. N.M.K. then woke P.M. and told him that he was leaving because he had forgotten to take his medication. As N.M.K. was walking to the front door to leave, Moore walked onto the upstairs hallway balcony that overlooks the front door and asked him what was going on. N.M.K. told Moore that he had forgotten his medication and was going home. A few minutes later, N.M.K.'s mother picked him up.

The May 2010 incident reminded N.M.K. of a previous incident that occurred in December 2009 when he was also 16 years old. He could not remember the exact date, but he had made arrangements to spend the night at the Moore residence with P.M. They played video games until the early morning hours, at which point Moore told them to go to bed. N.M.K. and P.M. went upstairs to the living room, where N.M.K. fell asleep face down on a couch. He woke up after feeling hands on his groin area over his clothing, moving around and pushing down on the cushions below him. The hands were palm down. N.M.K. opened his eyes and saw Moore, who told N.M.K. that he was looking for the remote control underneath him. At that time, N.M.K. believed Moore's statement because the television was still on and N.M.K. was half asleep.

The prior written statement of N.M.K. was admitted as evidence at trial, but it is not included in the record on appeal.

Trial Testimony—2005 and 2006 Incidents

Over Moore's objections, the State also presented the testimony of the alleged victims of the 2005 and 2006

incidents. K.H. testified that in November 2005, when he was almost 15 years old, he attended a weekend youth retreat run by a church. Moore was his cabin counselor, who slept in the same cabin but in a different room from the campers. K.H. was staying on a top bunk in a room with two other boys. On the first night of the retreat, K.H. woke up in the middle of the night to a flashlight. He saw a man standing over the bed across him, looking at the bed up and down. The man turned toward K.H., who was frightened and pretended to be asleep. When K.H. opened his eyes again, the man was hovering over his bed and reaching towards his sleeping bag. K.H. rolled over, and the man quickly left the room. K.H. saw that the man was about Moore's height. The next morning, K.H. compared his story with the story of J.G., another camper in a different room who had identified Moore. K.H. thus believed that the man in his room was Moore.

*4 J.G. testified he had attended the weekend youth retreat in November 2005, when he was 15 years old. Moore was one of his cabin counselors. J.G. was in the same cabin as K.H. but a different room. On the first night of the retreat, J.G. awoke in the middle of the night when he felt pressure and a hand making skin-to-skin contact with his penis. J.G. began to stir and saw someone rise and leave the room very quickly. As J.G. was waking up, he noticed that his penis had been buried up into the waistband of his boxers, which he found very odd. J.G. rolled over and tried to go back to sleep. A few minutes later, a large man came back into the room, squatted in front of the bunk across from J.G., and shined a flashlight up and down on another camper. When that camper did not stir, the man turned off the flashlight and began reaching toward the camper. J.G. called out Scott, and the man rose and left the room immediately. J.G. woke up the other three campers in the room and told them what had happened. About 10 minutes later, Moore came into the room and said that one of the campers was screaming in his sleep. J.G. knew that was not true because he had been awake. The next morning, J.G. spoke to K.H. and learned that a similar incident had happened to him in the other room of the cabin.

K.H. and J.G. reported the incidents to camp leadership, who were dismissive of their claims. The church undertook an internal investigation, but J.G. was unable to conclusively identify the perpetrator and could not be entirely sure at that time that anything had happened since he had been half asleep. The church did not make a report to the police and took no further action at that time.

J.G. testified that once he was able to understand fully what had happened, he believed Moore had touched his penis on the night in question.

One year later, in November 2006, Moore was again a cabin leader at a weekend youth retreat. M.C.W., T.C., B.K., and B.G., who were all 15 or 16 years old at the time, were campers in the same room within the cabin led by Moore and another leader. On the first night of the retreat, M.C.W. saw a figure come into the room, which he believed to be Moore based on the silhouette. He saw the man bend over T.C.'s bunk and look down at T.C. He then heard the sound of an elastic waistband hitting skin. In order to stop the situation, M.C.W. shot up out of bed like he had a bad dream, and the man left the room quickly. That same night, B.G. woke up during the night to some noise in the room. He saw a man shining a flashlight around at the different bunks. The man stayed down at a bottom bunk for a few seconds and reached down. At that point, M.C.W. started moving and the man turned to leave the room. B.G. was able to identify the man as Moore. Neither T.C. nor B.K. woke up that first night, but B.K. testified his sleeping bag was unzipped the next morning even though he was sure he had zipped it the night before. B.G. testified that the next morning Moore mentioned he had come into the room, either because Moore thought he heard some noise or because he believed that one of the boys was not in bed.

***5** T.C. testified that, on the second night of the youth retreat, he had gone to bed with a flashlight and woke up when he felt something poke him in the back. As T.C. turned over and shined his flashlight, he saw Moore next to B.K.'s bed. Moore then ran out of the room. The next morning, Moore told T.C. he had a dream that T.C. was gone or that something had happened to him, so he went into the room to make sure T.C. was still there.

The November 2006 incidents were reported to police, who opened an investigation. During the investigation, police also learned of the similar allegations against Moore from November 2005. Police forwarded the investigation to the prosecutor, but no charges were ever filed. However, the church revoked Moore's certification to work with children, youth, and vulnerable adults.

The prior written statements of K.H., M.C.W., B.G., and T.C. were admitted as evidence at trial, but they are not included in the record on appeal.

Moore presented the testimony of several witnesses in his defense. As to the present charges based on N.M.K.'s allegations, Moore's wife, daughter, and P.M. all testified they had not seen or heard anything happen during the early morning hours of May 15, 2010. P.M. denied he had fallen asleep that night and stated Moore had never reentered the living room after he turned off the lights and went upstairs. Moore's wife denied Moore had gone back downstairs after going to bed. P.M. and Moore's wife also testified N.M.K. had seemed to be upset with Moore because Moore had chastised N.M.K. earlier that night about getting into trouble at school. Furthermore, they both denied that N.M.K. had spent the night at their residence during December 2009. As to the November 2005 allegations, Moore's coleader and roommate at the retreat testified he had not noticed Moore leave the leader's area of the cabin during the night in question. Moore did not testify.

Closing Arguments

During the rebuttal portion of the State's closing argument, the following exchange occurred:

“[PROSECUTOR:] Now, the defendant would tell you that he didn't have the opportunity to commit this crime. Of course, you know his son, [P.M.]—

“[DEFENSE COUNSEL]: Can we approach, please?

“THE COURT: Yes.

“[DEFENSE COUNSEL]: Judge, I believe Counsel just said the defendant would tell.

“[PROSECUTOR]: I can rephrase that. If I said ‘defendant,’ I will rephrase.

“[DEFENSE COUNSEL]: I believe my opponent just said, ‘the defendant would tell you,’ and actually what she said followed by many other comments of her argument. I believe that draws undue attention to my client's refusal to testify, and I think it may well be reversible error. So I believe due to the comment made, I move for a mistrial.

“[PROSECUTOR]: I said ‘defendant,’ and I meant to say ‘defense's argument.’ I was talking about the defense witnesses that testified. It's not reversible error.

***6** “THE COURT: I'm not going to grant a mistrial at this juncture. I would have you rephrase. Would you like me to repeat the instruction on his right not to testify?

“[DEFENSE COUNSEL]: No, no, I don’t.”

Conviction and Sentence

The jury convicted Moore of Count I, related to the May 2010 incident, but acquitted him of Count II, related to the December 2009 incident. Moore was sentenced to 12 months in county jail. He timely appeals.

We will first address the question of whether the district court erred in admitting evidence of Moore's alleged incidents of prior misconduct under K.S.A.2011 Supp. 6055.

Moore argues the district court erred in admitting evidence of the alleged incidents of prior sexual misconduct from 2005 and 2006 under  K.S.A.2011 Supp. 60–455(b), which permits evidence of a person's other crimes or civil wrongs to be admitted only if such evidence is relevant to prove a material fact other than that person's propensity for misconduct. As a preliminary matter, Moore argues the testimony at trial revealed no specific act that occurred during the 2005 and 2006 incidents that could qualify as a prior offense or bad act for purposes of  K.S.A.2011 Supp. 60–455. Moore also contends that the evidence of the 2005 and 2006 incidents was too vague and unsupported to have any tendency to prove any of the facts raised by the State —i.e., his identity, opportunity, lack of mistake or accident, and plan or modus operandi. Furthermore, since he merely made a general denial of the charges, those facts were not in dispute and were thus immaterial. Finally, he contends that any probative value of the evidence was outweighed by its highly prejudicial effect.

Moore also contends the evidence was inadmissible under  K.S.A.2011 Supp. 60–455(d), which allows evidence of a person's other sexual misconduct to be admitted in a sex crime prosecution for any matter for which it is relevant, including that person's propensity for sexual misconduct. First, he briefly argues the evidence regarding the 2005 and 2006 incidents was so vague and unsupported that the incidents could not be considered sexual misconduct admissible under subsection (d). Second, he alleges the district court failed to properly consider whether the probative value of the 2005 and 2006 incidents was outweighed by the risk of undue prejudice and specifically failed to make a preliminary finding that those incidents had been proven by a preponderance of the evidence.

The State argues the district court properly admitted evidence of the 2005 and 2006 incidents under  K.S.A.2011 Supp. 60–455, although it did not specify the subsection or subsections upon which it relied. The State contends this evidence was highly probative of a disputed material fact —i.e., Moore's intent to touch N.M.K. to satisfy his own sexual desires. Furthermore, the State argues the evidence of the 2005 and 2006 incidents was not highly prejudicial against Moore, as demonstrated by the fact the jury acquitted Moore of Count II related to the alleged touching of N.M.K. in December 2009; and since the probative value of the evidence outweighed its potential for undue prejudice, the court did not err in admitting the evidence. Finally, the State suggests that even if the evidence of the 2005 and 2006 incidents could not be deemed sexual misconduct within the meaning of  K.S.A.2011 Supp. 60–455(d), then it would still be admissible under the general relevance inquiry of K.S.A. 60–401(b).

Amendments to K.S.A. 60–455

*7 Before addressing the parties' arguments, it is helpful to review the substantial amendments to  K.S.A. 60–455 that took effect on April 30, 2009, and the caselaw interpreting those amendments. Before those amendments,  K.S.A. 60–455 provided:

Subject to K.S.A. 60–447 evidence that a person committed a crime or civil wrong on a specified occasion, is inadmissible to prove his or her disposition to commit crime or civil wrong as the basis for an inference that the person committed another crime or civil wrong on another specified occasion but, subject to K.S.A. 60–445 and 60–448 such evidence is admissible when relevant to prove some other material fact including motive, opportunity, intent, preparation, plan, knowledge, identity or absence of mistake or accident.

In  *State v. Prine*, 287 Kan. 713, 724–36, 200 P.3d 1 (2009) (*Prine I*), our Supreme Court reversed the defendant's convictions for sex offenses against a 6-year-old girl on the basis that evidence relating to the defendant's purported sexual abuse of other child victims constituted improper propensity evidence prohibited by the version of  K.S.A. 60–455 then in effect. In doing so, our Supreme Court acknowledged that evidence of prior sexual abuse of children was peculiarly susceptible to characterization as

propensity evidence forbidden under [K.S.A. 60-455](#) and thus convictions for such crimes were especially vulnerable to successful attack on appeal:

This is disturbing because the modern psychology of pedophilia tells us that propensity evidence may actually possess probative value for juries faced with deciding the guilt or innocence of a person accused of sexually abusing a child. In short, sexual attraction to children and a propensity to act upon it are defining symptoms of this recognized mental illness. [Citation omitted.] 287 Kan. at 737, 200 P.3d 1.

Our Supreme Court then invited the Kansas Legislature to examine the advisability of amendment to [K.S.A. 60-455](#) in order to make it more workable in child sex cases without doing unconstitutional violence to the rights of criminal defendants. 287 Kan. at 737, 200 P.3d 1. The legislature responded swiftly, amending the statute effective April 30, 2009. L.2009, ch. 103, sec. 12. The statute was amended again in 2011 for technical purposes to update references in light of the recodified criminal code. L.2011, ch. 30, sec. 215. The [K.S.A.2011 Supp. 60-455](#), which was in effect at the time of Moore's trial and thus applicable to this case, provides in part:

“(a) Subject to [K.S.A. 60-447](#), and amendments thereto, evidence that a person committed a crime or civil wrong on a specified occasion, is inadmissible to prove such person's disposition to commit crime or civil wrong as the basis for an inference that the person committed another crime or civil wrong on another specified occasion.

“(b) Subject to [K.S.A. 60-445](#) and [60-448](#), and amendments thereto, such evidence is admissible when relevant to prove some other material fact including motive, opportunity, intent, preparation, plan, knowledge, identity or absence of mistake or accident.

*8 “(c) Subject to [K.S.A. 60-445](#) and [60-448](#), and amendments thereto, in any criminal action other than a criminal action in which the defendant is accused of a sex offense under articles 34, 35 or 36 of chapter 21 of the Kansas Statutes Annotated, prior to their repeal, or articles 54, 55 or 56 of chapter 21 of the Kansas Statutes Annotated, or [K.S.A.2011 Supp. 21-6104, 21-6325, 21-6326](#) or [21-6418](#) through [21-6421](#), and amendments thereto, such evidence is admissible to show the modus operandi

or general method used by a defendant to perpetuate similar but totally unrelated crimes when the method of committing the prior acts is so similar to that utilized in the current case before the court that it is reasonable to conclude that the same individual committed both acts.

“(d) Except as provided in [K.S.A. 60-445](#), and amendments thereto, in a criminal action in which the defendant is accused of a sex offense under articles 34, 35 or 36 of chapter 21 of the Kansas Statutes Annotated, prior to their repeal, or articles 54, 55 or 56 of chapter 21 of the Kansas Statutes Annotated, or [K.S.A.2011 Supp. 21-6104, 21-6325, 21-6326](#) or [21-6418](#) through [21-6421](#), and amendments thereto, evidence of the defendant's commission of another act or offense of sexual misconduct is admissible, and may be considered for its bearing on any matter to which it is relevant and probative.

In [State v. Prine, 297 Kan. 460, 303 P.3d 662 \(2013\) \(Prine II\)](#), which was the appeal after the retrial ordered in *Prine I*, our Supreme Court interpreted the 2009 amendments to [K.S.A. 60-455](#):

“The plain language of the amended statute retains the old version's general prohibition on the use of propensity evidence in subsection (a). Subsection (b) contains the old version's nonexclusive list of material facts other than propensity that may be proved by other crimes and civil wrongs evidence. Meanwhile, the amended statute's new language in subsection (c) responds to our *Prine I* ruling that other crimes or civil wrongs admitted to show a nonpreparation type of plan must be so ‘strikingly similar’ or so similar as to constitute a ‘signature’ when compared with the charged crime. This subsection explicitly does not apply to the sex offense prosecutions such as this. New subsection (d) does cover sex crime prosecutions; it permits evidence of other acts or offenses of sexual misconduct to be admitted in such a prosecution ‘for its bearing on any matter to which it is relevant and probative.’

“The basic prohibition contained in the original statute, now subsection (a), is straightforward: Evidence that a defendant committed a crime or civil wrong on a specified occasion is generally inadmissible to prove that person's disposition or propensity to commit the charged crime. As a rule of exclusion, the prohibition on propensity evidence is based on the principle that such evidence is irrelevant and unduly prejudicial; and, historically, the rule has been strictly enforced. [Citation omitted.]

*9 “But the legislature’s intention to relax the prohibition on evidence of other acts or offenses of sexual misconduct to show propensity, indeed, and ‘any matter to which it is relevant and probative’ in sex crime cases is explicit in the statute’s new subsection (d)....

....

“Subsection (d) of the amended [K.S.A. 60–455](#) still requires, as the State admits, a district judge to perform a gatekeeping function. Under the language of the amended statute, the evidence of the other act or offense of sexual misconduct the State desires to admit must be ‘relevant and probative.’ This court’s definition of those two terms makes the ‘and probative’ portion of that phrase redundant; the concept of relevant encompasses both materiality and probative value. See [K.S.A. 60–401\(b\)](#); [Prine I](#), 287 Kan. at 725, 200 P.3d 1. Materiality requires that whatever fact sought to be proved be in dispute or in issue between the parties to the case. See [[State v. Garcia](#), 285 Kan. 1, 14, 169 P.3d 1069 (2007)]. The requirement of probative value demands that the evidence have a logical tendency to prove the material fact. See, e.g., [State v. Reid](#), 286 Kan. 494, 505, 186 P.3d 713 (2008).

“Under our cases construing and applying [K.S.A. 60–455](#) as it existed before the 2009 amendment, district judges were required to evaluate these concepts. [Citations omitted.] Thus these concepts will be familiar as district judges apply the amended statute.

“Under the prior version of [K.S.A. 60–455](#), we also required district judges to balance the probative value of other crimes or civil wrongs evidence against the threat of undue prejudice. See, e.g., [State v. Vasquez](#), 287 Kan. 40, 49, 194 P.3d 563 (2008). Neither side in this appeal has suggested that we abandon this judicially created safeguard. We thus leave the question of whether the necessity of this weighing persists under new subsection (d) to another day. Assuming that it does persist, federal cases interpreting Federal Rules [of Evidence] 413, 414, and 415 on which subsection (d) was modeled provide helpful guidance on how the weighing is to be conducted. [Citations omitted.]” [Prine II](#), 297 Kan. at 475–78, 303 P.3d 662.

Following *Prine II*, our Supreme Court clarified its assumption that, in the absence of any argument to the contrary, the balancing test of probative value versus prejudicial effect remains in effect under the new version of [K.S.A. 60–455](#). See [State v. Bowen](#), 299 Kan. 339, 348–51, 323 P.3d 853 (2014); [State v. Dean](#), 298 Kan. 1023, 1031–33, 324 P.3d 1023 (2014).

Application of K.S.A.2011 Supp. 60–455

Turning to the arguments of the parties, we must first determine which subsection or subsections of [K.S.A.2011 Supp. 60–455](#) are applicable to the present case. The district court did not specify which subsection it relied upon in its decision to admit evidence of the 2005 and 2006 incidents, although its findings appear consistent with the language of subsection (b). Similarly, the State neither specified before the district court nor specifies on appeal which subsection or subsections of 60–455 it believes are applicable. Its arguments on appeal appear to be more consistent with subsection (b), although it notes that propensity evidence would be admissible under subsection (d). Finally, Moore contends on appeal the evidence was inadmissible under both subsection (b) and subsection (d).

*10 Resolution of this issue requires the interpretation of [K.S.A.2011 Supp. 60–455](#), which is a question of law over which an appellate court exercises unlimited review. See [State v. Dale](#), 293 Kan. 660, 662, 267 P.3d 743 (2011).

The most fundamental rule of statutory construction is that the intent of the legislature governs if that intent can be ascertained. An appellate court must first attempt to ascertain legislative intent through the statutory language enacted, giving common words their ordinary meanings. When a statute is plain and unambiguous, an appellate court does not speculate as to the legislative intent behind it and will not read into the statute something not readily found in it. [State v. Urban](#), 291 Kan. 214, 216, 239 P.3d 837 (2010).

As discussed by our Supreme Court in [Prine II](#), 297 Kan. at 475–78, 303 P.3d 662 subsection (a) contains the general prohibition on the use of evidence of other crimes or civil wrongs to prove propensity for misconduct. Subsection (b) is a corollary of subsection (a) and contains a nonexclusive list of material facts, other than propensity, that may be proved by relevant evidence of other crimes and civil wrongs.

Subsection (d), on the other hand, is a true exception to the general prohibition of subsection (a). It explicitly allows for the admission of relevant evidence of other crimes or civil wrongs to prove “any matter”—including propensity—in cases where: (1) the action in which the evidence is sought to be admitted is a criminal action for a sex offense under one of the listed Kansas statutes; and (2) the evidence sought to be admitted qualifies as an “act or offense of sexual misconduct,” which is further defined in subsection (g) of the statute. See

State v. Spear, 297 Kan. 780, 789, 304 P.3d 1246 (2013). If subsection (d) is applicable, then no analysis under subsection (b) is necessary. The evidence will either be relevant to prove any matter at issue in the case or it will be irrelevant and thus inadmissible under either subsection (b) or (d).

Here, the action against Moore was a criminal action for sexual battery under K.S.A. 21–3517, which is a sex offense listed in K.S.A.2011 Supp. 60–455(d). The more difficult question is whether the conduct alleged in the 2005 and 2006 incidents qualifies as an act or offense of sexual misconduct. Under K.S.A.2011 Supp. 60–455(g) (6), sexual misconduct includes contact, without consent, between any part of the defendant's body or an object and the genitals, mouth or anus of the victim. Under K.S.A.2001 Supp. 60–455(g)(9), sexual misconduct also includes an attempt to engage in such conduct. In the absence of any statutory or caselaw guidance on how a district court should determine whether evidence proffered by the State under K.S.A.2011 Supp. 60–455 constitutes an “act or offense of sexual misconduct” within the meaning of subsection (d), it is reasonable to conclude that the district court possesses broad discretion in making such a determination. See *Prine II*, 297 Kan. at 476, 303 P.3d 662 (legislative history of amendments to K.S.A. 60–455 indicate intent to codify Kansas common-law practice of liberal admission of prior crimes evidence in sex abuse cases).

*11 The district court in this case implicitly found that the conduct alleged in the 2005 and 2006 incidents constituted acts of sexual misconduct based on their similarity to the allegations by N.M.K. Since the evidence proffered by the State could reasonably support the conclusion that Moore had inappropriately touched or attempted to touch the genitals of the victims and such conduct falls within the definition of “sexual misconduct” under K.S.A.2011 Supp. 60–455(g),

it cannot be said that the district court abused its discretion in finding that the 2005 and 2006 incidents qualified as acts of sexual misconduct. See *State v. Ward*, 292 Kan. 541, 550, 245 P.3d 801 (2011) (judicial discretion is abused if the judicial action is based on an error of fact or law or if no reasonable person would take the view adopted by the district court), *cert. denied* — U.S. —, 132 S.Ct. 1594, 182 L.Ed.2d 205 (2012).

Since K.S.A.2011 Supp. 60–455(d) is applicable to the present case, we must next determine whether the district court erred in admitting the evidence under that subsection. This requires a two-step process. First, the district court determines whether the evidence is relevant—*i.e.*, material and probative. *Prine II*, 297 Kan. at 477, 303 P.3d 662. Materiality requires that whatever fact sought to be proved has a legitimate and effective bearing on the decision of the case and is in dispute. Probableness requires that the evidence have a logical tendency to prove the material fact. 297 Kan. at 477, 303 P.3d 662; *State v. Garcia*, 285 Kan. 1, 14, 169 P.3d 1069 (2007). On appeal, materiality is reviewed *de novo*, whereas probableness is reviewed for abuse of discretion. *State v. Vasquez*, 287 Kan. 40, 50, 194 P.3d 563 (2008). Second, the district court must determine whether the probative value of the evidence outweighs its potential for undue prejudice. On appeal, the district court's determination is reviewed for abuse of discretion. *Bowen*, 299 Kan. at 348, 323 P.3d 853; *State v. Remmert*, 298 Kan. 621, 628, 316 P.3d 154 (2014).

In sex offense cases, propensity evidence is material because it has a legitimate and effective bearing on the defendant's guilt. *Bowen*, 299 Kan. at 349, 323 P.3d 853. Here, Moore's propensity to commit sex offenses was clearly at issue. Therefore, the evidence of the 2005 and 2006 incidents was material.

As to whether the evidence was probative, the district court found it was probative because it was substantially similar to the allegations made by N.M.K., including the flashes of light, the sex and age of the alleged victims, and the time of the touching. Moore adamantly argues the evidence, as revealed through testimony at trial, failed to show that any bad acts occurred during the 2005 and 2006 incidents or that he committed any of the purported bad acts. However, a

factfinder could reasonably conclude, based on the testimony presented at trial, that Moore had touched or attempted to touch teenage boys while they were sleeping. Moreover, a factfinder could reasonably infer that Moore had done so with sexual intent. See [State v. Scaife](#), 286 Kan. 614, 618–19, 186 P.3d 755 (2008) (factfinders may infer the existence of a material fact from circumstantial evidence, even though the evidence does not exclude every other reasonable conclusion or inference). Therefore, Moore's argument that the evidence failed to show sexual misconduct and thus was not probative of any material fact is unpersuasive.

***12** The evidence of the 2005 and 2006 incidents made more probable the truth of the proposition that Moore had a disposition to touch or attempt to touch teenage boys, especially at night when the boys appeared to be sleeping. Since a reasonable person could find evidence had a logical tendency to prove Moore's propensity to commit sexual battery against teenage boys, the district court did not abuse its discretion in finding that the evidence was probative.

We must next determine whether the district court erred in finding the probative value of the evidence of the 2005 and 2006 incidents outweighed its potential for undue prejudice. In *Prine II*, which was decided after the trial in this case, our Supreme Court approvingly cited several federal cases for guidance as to how this balancing test should be conducted under [K.S.A.2011 Supp. 60–455\(d\)](#). See [297 Kan. at 478](#), 303 P.3d 662 ([United States v. Enjady](#), 134 F.3d 1427, 1433 [10th Cir.], cert. denied 525 U.S. 887 [1998]; [United States v. Benally](#), 500 F.3d 1085, 1090–91 [10th Cir.2007]).

In *Enjady*, the Tenth Circuit Court of Appeals set forth the following factors that a federal district court should consider when balancing the probative value versus the prejudicial effect of evidence of similar crimes sought to be admitted in sex assault cases under [Federal Rules of Evidence 413](#):

“1) how clearly the prior act has been proved; 2) how probative the evidence is of the material fact that it is admitted to prove; 3) how seriously disputed the material fact is; and 4) whether the government can avail itself of any less prejudicial evidence. When analyzing the probative dangers, a court considers: 1) how likely is it such evidence will contribute to an improperly-based jury verdict; 2) the extent to which such evidence will distract the jury from the central issues of the trial; and 3) how time

consuming it will be to prove the prior conduct.” [134 F.3d at 1433](#).

The *Enjady* court also held the federal district court must make a preliminary finding that a jury could reasonably find by a preponderance of the evidence that the similar crime occurred. [134 F.3d at 1433](#). In *Benally*, the Tenth Circuit extended the *Enjady* test to similar crimes evidence sought to be admitted in child molestation cases under [Federal Rules of Evidence 414](#), including the threshold requirement that the district court make a preliminary finding that the similar crime occurred. [Benally](#), 500 F.3d at 1090–91.

In at least two cases following *Prine II*, our Supreme Court again approvingly cited the *Enjady/Benally* factors for use under [K.S.A.2011 Supp. 60–455\(d\)](#). See [Bowen](#), 299 Kan. at 350, 323 P.3d 853; [Remmert](#), 298 Kan. at 628, 316 P.3d 154. Notably, in neither case did our Supreme Court mandate the use of those factors, nor did it mention or adopt the threshold requirement that the district court make a preliminary finding regarding the occurrence of the similar crime.

Moore challenges the district court's weighing of the probative value and prejudicial effect of the 2005 and 2006 incidents under [K.S.A.2011 Supp. 60–455\(d\)](#) primarily on the basis that it did not explicitly apply the *Enjady/Benally* factors. Moore is particularly critical that the district court did not make a preliminary finding that a reasonable jury could find by a preponderance of the evidence that 2005 and 2006 incidents actually occurred and/or constituted sexual misconduct rather than innocent behavior.

***13** Although it is clear our Supreme Court approves of the *Enjady/Benally* factors, it has not mandated the use of those factors nor adopted any threshold requirement. In any event, the trial in this case predated the approval of the *Enjady/Benally* factors in Kansas caselaw. Thus, the district court did not abuse its discretion on the basis that it failed to consider the *Enjady/Benally* factors or to make a preliminary finding regarding the existence of the 2005 and 2006 incidents.

The district court here did not explicitly weigh the probative value of the evidence of the 2005 and 2006 incidents against its potential for undue prejudice. Nonetheless, it did recognize that such balancing was appropriate

under  [K.S.A.2011 Supp. 60–455\(d\)](#). It acknowledged the evidence was prejudicial and excluded two other incidents of alleged sexual abuse because it found they were too dissimilar to the present charges. But the court found the evidence of the 2005 and 2006 incidents was admissible because it was so similar to the present charges, including the age and sex of the victims, the flashes of light, and the fact that the alleged touching or attempted touching occurred at night when the victims appeared to be asleep. It is clear from this ruling that the court found the highly probative nature of the evidence of the 2005 and 2006 incidents outweighed its potential for undue prejudice.

Finally, as the State points out, most of the evidence presented by the State against a criminal defendant at trial will be prejudicial to the defendant; the balancing test is only intended to guard against *undue* prejudice. See  [Vasquez, 287 Kan. at 53, 194 P.3d 563](#). Undue prejudice includes the likelihood that the evidence will contribute to an improperly based jury verdict or distract from the central issues at trial.

See  [Enjady, 134 F.3d at 1433](#). Here, the jury acquitted Moore of Count II relating to the December 2009 incident alleged by N.M.K. The acquittal on Count II indicates that the jury did not convict Moore of Count I, relating to the May 2010 incident alleged by N.M.K., merely because it heard evidence that Moore may have previously improperly touched or attempted to touch teenage boys under similar circumstances. Rather, the jury held the State to its burden to prove each element of each count beyond a reasonable doubt.

Under these circumstances, where the evidence of the 2005 and 2006 incidents was highly probative and there is no indication its admission led to undue prejudice, it cannot be said that the district court abused its discretion in admitting the evidence.

We next turn to the question of whether the district court erred in denying Moore's motions for mistrial based on allegedly improper comments by the prosecutor regarding Moore's decision not to testify.

Moore argues the district court erred in denying his motions for mistrial based on comments by the prosecutor during voir dire and closing argument that drew attention to Moore's decision not to testify, thereby violating his privilege against self-incrimination under the Fifth Amendment to the United States constitution. He contends the error is reversible because the court did not admonish the jury to disregard

the prosecutor's comments and because the case against him relied entirely on eyewitness accounts.

***14** The State argues the prosecutor's comments were not improper. And even if the comments were improper, the State contends the error was not reversible because the alleged misconduct was not gross or flagrant and showed no ill will on the part of the prosecutor. Furthermore, the fact that the jury acquitted Moore on Count II showed that the jury probably did not hold Moore's failure to testify against him and thus no prejudice resulted from the allegedly improper comments.

Under [K.S.A. 22–3423\(1\)\(c\)](#), a district court may declare a mistrial if there was prejudicial conduct either inside or outside the courtroom that makes it impossible for the trial to proceed without injustice to either party. This statute creates a two-step process. First, the court must determine if there was some fundamental failure in the proceeding. If so, the court moves to the second step and determines whether it is possible to continue without injustice. In other words, the court must decide if the prejudicial conduct's damaging effect can be removed or mitigated by an admonition, jury instruction, or other action. If not, the court must determine whether the degree of prejudice results in an injustice and, if so, declare a mistrial. An appellate court evaluates each step of a district court's ruling on a motion for mistrial for abuse of discretion. [State v. Harris, 297 Kan. 1076, 1086–87, 306 P.3d 282 \(2013\)](#) (citing  [Ward, 292 Kan. at 550–51, 256 P.3d 801](#)).

When the basis of the motion for mistrial is an allegation of prosecutorial misconduct, analysis of the first step—*i.e.*, whether there was a fundamental failure in the proceeding—focuses on whether prejudicial prosecutorial misconduct occurred. Appellate review of an allegation of prosecutorial misconduct requires a two-step analysis. First, an appellate court decides whether the comments were outside the wide latitude a prosecutor is allowed in discussing the evidence. If so, there was misconduct. Second, if misconduct is found, an appellate court must determine whether the improper comments prejudiced the jury and denied the defendant a fair trial. [Harris, 297 Kan. at 1087, 306 P.3d 282](#).

Under the second step, an appellate court considers whether the misconduct was gross and flagrant, whether it was motivated by ill will, and whether the evidence in the case was so direct and overwhelming that the misconduct would likely have had little weight in the minds of jurors. No one factor is controlling. Before the third factor can ever override the first two factors, the appellate court must be able to say that

the constitutional harmless error test has been met. In other words, the party benefitting from the error must prove that there is no reasonable possibility that the error contributed to the verdict.  *State v. Williams*, 299 Kan. 509, 540–41, 324 P.3d 1078 (2014).

A prosecutor is prohibited from making direct, adverse comments on a defendant's failure to testify on his or her own behalf. A prosecutor is also prohibited from making indirect comments if the language used was manifestly intended or of such a character that the jury would necessarily take it as a comment on the defendant's failure to testify.  *State v. Harris*, 279 Kan. 163, 173–74, 105 P.3d 1258 (2005).

***15** Here, the prosecutor's question during voir dire asking potential jurors if they wanted to hear from the defendant was immediately preceded by several comments indicating that Moore was not required to present any evidence at trial, including his own testimony, and the jury could not hold his failure to present evidence or his failure to testify against him. In this context, it is clear that the prosecutor's question was not meant to imply that the jury could draw any inference from Moore's failure to testify, nor would the jury necessarily take the question as such. Rather, the prosecutor's subsequent statements confirm she was trying to identify biases in the jury pool, specifically concerning whether any potential jurors would expect Moore to testify and would hold his failure to do so against him. While the prosecutor's question was inartfully worded, it was not outside the wide latitude afforded to prosecutors and did not constitute misconduct.

Next, the prosecutor's comment during closing argument that “the defendant” would tell the jury that he did not have the opportunity to commit the crime was an isolated statement prefacing her discussion of the testimony of Moore's wife and son, who both testified that Moore did not have the opportunity to touch N.M.K. during the early morning hours of May 15, 2010. The prosecutor's one-time use of the word “defendant,” rather than “defense” or “defense witnesses,” shows no manifest intention to draw the jury's attention to Moore's failure to testify, and the jury would not necessarily take it as a comment on his failure to testify. The prosecutor admitted, out of the hearing of the jury, that she had

made an error, but did she not further draw attention to or repeat the error. Furthermore, defense counsel declined the district court's offer to remind the jury that it could not draw any inference from the Moore's failure to testify. Under these circumstances, it is reasonable to conclude that the prosecutor's isolated misstatement did not constitute misconduct. *Cf. State v. Albright*, 283 Kan. 418, 426–27, 153 P.3d 497 (2007) (no substantial prejudice where prosecutor inadvertently violated order in limine, error was isolated, no attention was drawn to the error, and defense counsel declined the district court's offer of a curative instruction).

Even if the prosecutor's comments were improper, they did not constitute gross and flagrant misconduct and showed no ill will on the part of the prosecutor. Therefore, no prejudicial prosecutorial misconduct occurred. The district court did not abuse its discretion in concluding that the prosecutor's comments did not cause a fundamental failure in the proceeding and thus denying Moore's motions for mistrial.

Finally, we will address whether the alleged misconduct of defense counsel rendered harmless any trial error.

The State contends that misconduct by defense counsel rendered harmless any trial error made by either the district court or the prosecutor. But as discussed above, no error occurred and thus there is no need to conduct a harmless error analysis. Furthermore, the State cites no controlling or persuasive authority for the proposition that misconduct by defense counsel in a criminal case can mitigate the harm to a defendant's fair trial rights caused by the errors of the district court or the prosecutor. Failure to support a point with pertinent authority or to show why it is sound despite a lack of supporting authority or in the face of contrary authority is akin to failing to brief the issue. *State v. Tague*, 296 Kan. 993, 1001, 298 P.3d 273 (2013). The State's argument is without merit.

***16** Affirmed.

All Citations

332 P.3d 214 (Table), 2014 WL 4231237